

- RAG Learning

2.9 Comparative — Constitutional Arrangements

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

This is the foundational comparative topic: the constitutional differences established here explain most of what follows in 2.10 to 2.14. Two words do nearly all the work — **codification** and **entrenchment**.

The three comparative approaches run through all six sections of 3.2.2 and are examined within them.

- **Structural** — institutions, constitutional rules and the framework actors operate within.
- **Rational** — individuals making calculated choices to advance their own interests.
- **Cultural** — shared ideas, values, beliefs and historical experience.

1. The two constitutions side by side

	UK	USA
Form	Uncodified — scattered across statute, common law, convention, works of authority	Codified — a single authoritative document (1787)
Entrenchment	Unentrenched — changeable by ordinary Act of Parliament	Entrenched — double supermajority required (2/3 Congress, 3/4 states)
Sovereignty	Parliamentary sovereignty	Popular sovereignty, expressed through the Constitution; power

		divided federally
Territorial structure	Unitary with devolution ("quasi-federal")	Federal — state powers constitutionally entrenched (10th Amendment)
Powers	Fused — executive drawn from and sitting in the legislature	Separated — separate institutions, separate personnel
Judicial power	Cannot strike down statute; declaration of incompatibility only	Can declare Acts of Congress and state laws void
Rights	Statutory (HRA, Equality Act) — repealable by simple majority	Entrenched in the Bill of Rights and later amendments
Amendment record	Extensive change since 1997 through ordinary legislation	27 amendments since 1789; ten of them in 1791

2. Structural analysis

Why the US constitution changes less

- **The double supermajority** allows a minority of states, holding a small share of the national population, to block any amendment.
- **Fragmentation multiplies veto points** — separation of powers, bicameralism, federalism and the filibuster each require separate consent.
- By contrast the UK has almost **no veto points**: a government with a Commons majority can change the constitution by simple majority, with the Lords able only to delay and no court able to invalidate the result.

This is why devolution, the Human Rights Act and the Supreme Court were all delivered within single parliamentary terms — and why the Fixed-term Parliaments Act could be passed in 2011 and repealed in 2022.

Why the US Supreme Court is more powerful

Entrenchment gives it a **higher law to enforce** and makes its rulings **effectively final**. The UK Court has neither. Given the same constitution, any court would acquire the same power.

The consequence nobody plans for

Because formal amendment is near-impossible, US constitutional change happens through **judicial interpretation** instead — which transfers constitutional authorship from the people to nine appointed justices, and explains why appointments are fought over so fiercely.

3. Cultural analysis

- **Founding experience.** The USA was created through revolution against arbitrary and distant rule, producing enduring distrust of concentrated power — expressed in a written text that limits government explicitly, disperses authority and guarantees rights. The UK constitution evolved gradually through negotiated settlements (Magna Carta, 1689, successive Reform Acts) with no single founding moment at which a comprehensive text could have been written.
- **Rights discourse.** American political argument is framed as individual rights asserted against government, so moral questions become constitutional claims litigated in court. The British tradition is one of *residual liberties* — freedom to do whatever is not prohibited — with remedy sought through Parliament.
- **Pragmatism vs principle.** British constitutional development is incremental and empirical (Oakeshott, Burke); American constitutionalism appeals to founding principle and original meaning.

Exam Tip: The cultural approach's limitation is worth stating: culture and structure are hard to separate, because the institutions were *chosen* because of these cultural assumptions and then reinforced them. Culture explains the **origin** of the institutions; structure explains their **consequences**. Saying so explicitly is the analytical move.

4. Rational analysis

- **Why UK governments resist codification.** Codification would bind the governing party's own freedom of action and transfer power to judges. A party in office has no incentive to surrender flexibility it currently enjoys — which explains why every government talks about constitutional reform in opposition and does less in power.
- **Why US states block amendments.** Small states would have to consent to their own disadvantage to reform the Electoral College or Senate apportionment. Rational self-interest, not principle, explains the persistence of provisions with majority public opposition.
- **Why UK reform has been piecemeal.** Reforms delivered since 1997 were those that suited the governing party at the time — devolution, Lords hereditary removal, the HRA — while the Westminster electoral system, which advantages both main parties, was left untouched.

5. Similarities

Comparative answers that list only differences rarely reach the top band.

- Both are **liberal democracies** with the rule of law, free elections, an independent judiciary and accountable government.
- Both **disperse power territorially** — federalism and devolution — and in both, that boundary is contested.
- Both have become **more rights-focused** since the late twentieth century, with courts growing more prominent in both.
- Both give the legislature control over public finance.
- Both operate a **common law** legal tradition with binding precedent.

6. Evaluation: which is better?

Case for the UK model	Case for the US model
Flexibility — adapts rapidly to changed circumstances without constitutional crisis	Security — rights and institutions protected from temporary majorities

Democratic authorship — elected politicians, not judges, make constitutional choices	Clarity — citizens can read the rules; disputes turn on a text rather than contested convention
Avoids gridlock — a government with a majority can actually govern	Genuine limits on the executive — the "elective dictatorship" problem does not arise
No obsolete provisions — nothing survives that a majority wants removed	Federal bargain protected — regions cannot be overridden as the devolved nations were in 2020

Exam Tip: The strongest conclusion refuses the framing. **Flexibility and insecurity are the same property; entrenchment and rigidity are the same property.** Each system's greatest strength is the direct source of its greatest weakness, so "which is better" reduces to *which risk you would rather run* — a government that can do too much, or one that can do too little.

7. Is the UK converging on the US model?

Yes, in several respects: devolution disperses power territorially; the HRA created a rights framework; the Constitutional Reform Act 2005 produced a separate Supreme Court and sharpened the separation of powers; referendums introduced a source of popular authority alongside parliamentary sovereignty.

But not fundamentally: parliamentary sovereignty survives all of it. Courts still cannot strike down statute, rights are not entrenched, and devolved powers can legally be reclaimed — as the UK Internal Market Act 2020 demonstrated. The UK has moved in a US direction *without adopting the feature that defines the US model*.

Key terms

Term	Definition
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Codified / uncoded	Collected in a single authoritative document / drawn from multiple sources
Entrenched / unentrenched	Requiring a special amendment procedure / changeable by ordinary legislation
Parliamentary sovereignty	Parliament is the supreme law-making body (UK)
Popular sovereignty	Ultimate authority resides with the people, expressed through the Constitution (USA)
Fusion of powers	Executive drawn from and accountable to the legislature (UK)
Separation of powers	Separate institutions with separate personnel (USA)
Quasi-federalism	Devolved powers politically entrenched but legally revocable
Veto point	An institutional stage at which a proposal can be blocked

Essential examples

- **FTPA 2011, repealed 2022** — UK unentrenchment.
- **Equal Rights Amendment** — passed Congress 1972, never ratified; US entrenchment.
- **Miller I and II (2017, 2019)** — UK courts constraining the executive but not the legislature.
- **Dobbs (2022)** — US constitutional change through interpretation rather than amendment.
- **UK Internal Market Act 2020** — devolved consent overridden; no US state could be treated this way.
- **Constitutional Reform Act 2005** — UK moving towards separation of powers.